

Court No. - 21

Case :- WRIT - C No. - 3253 of 2018

Petitioner :- Manveer Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Mr Suresh Chandra Kushwaha

Counsel for Respondent :- C.S.C., Mr Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Petitioner has approached this Court challenging the recovery proceedings initiated by the respondent Corporation to recover the outstanding electricity dues.

Learned counsel for the petitioner does not dispute the amount sought to be recovered. It is submitted that the petitioner may be permitted to make payment of dues in instalments.

Sri Kamal Kumar Kesarwani holding brief of Sri Baleshwar Chaturvedi who has accepted notice on behalf of respondents no. 2 & 3, referring the clause 6.14 of the Electricity Supply Code, 2005 contends that the petitioner can approach the relevant authority under Clause 6.14 for making payment of the outstanding dues in instalments.

Clause 6.14 of the Code confers power upon the licensee to extend the facility of instalments to those consumers who are in financial distress. Sub-clause (2) provides the procedure and manner in which the said power is to be exercised.

Since the petitioner has a remedy available under Clause 6.14 of the Electricity Supply code, 2005, we dispose of the writ petition by providing that the petitioner may approach the concerned authority by making a proper application. In case any such application is made, the concerned authority shall proceed to consider and decide the same in accordance with law and the procedure prescribed expeditiously.

Order Date :- 24.1.2018

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